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TAB 4



Board of Education Report

File #: Rep-124-23/24, **Version:** 1

Define and Approve the Middleton Street Elementary School Cooling Tower Replacement Project and Amend the Facilities Services Division Strategic Execution Plan to Incorporate Therein

December 12, 2023

Facilities Services Division

Action Proposed:

Define and approve the Middleton Street Elementary School Cooling Tower Replacement Project (Project) and amend the Facilities Services Division (Facilities) Strategic Execution Plan (SEP) to incorporate therein. The total budget for the proposed Project is \$1,834,544.

Authorize the Chief Procurement Officer and/or the Chief Facilities Executive and/or their designee(s) to execute all instruments necessary, as legally permissible, to implement the proposed Project, including budget modifications and the purchase of equipment and materials.

Background:

Priorities for the expenditure of capital funding are evaluated to ensure the District's most pressing priorities are being addressed. More than 70 percent of Los Angeles Unified School District (Los Angeles Unified or District) school buildings were built more than 50 years ago, and more than \$50 billion of unfunded school facilities needs have been identified District-wide, and these needs grow every year. As the District's capital needs far exceed available funding, the most pressing unfunded critical needs will continue to be addressed based on an evaluation of known facilities conditions and needs at schools. Projects developed under this category of need, Critical Replacements and Upgrades of School Building/Site Systems and Components, will replace failing building systems that create safety concerns and are disruptive to school operations. Systems in the worst condition, especially those that pose a safety hazard and/or will negatively impact school operations and other building systems if not addressed, will be addressed first.

The proposed Project aligns with these priorities. The proposed Project will replace the cooling tower and water treatment unit at the Administration Building and provide new joists to support the new tower. Construction is anticipated to begin in the first quarter of 2024 and be completed in the fourth quarter of 2024.

Bond Oversight Committee Recommendations:

This item was considered by the School Construction Bond Citizens' Oversight Committee (BOC) at its meeting on November 30, 2023. Staff has concluded that this proposed Facilities SEP amendment is in alignment with BOC recommendations and will facilitate Los Angeles Unified's ability to successfully implement the Facilities SEP.

Expected Outcomes:

Staff anticipates that the Board of Education will adopt the proposed amendment to the Facilities SEP to define and approve the proposed Project to address critical replacement and upgrade needs. Approval will authorize staff to proceed with the implementation of the proposed Project to improve student health, safety, and educational quality.

Board Options and Consequences:

Adoption of the proposed action will authorize staff to proceed with the expenditure of Bond Program funds to undertake the proposed Project in accordance with the provisions set forth in Los Angeles Unified local bond measures K, R, Y, Q, and RR. If the proposed action is not approved, Bond Program funds will not be expended, and critical replacement and upgrade needs will remain unaddressed.

Policy Implications:

The proposal is consistent with Los Angeles Unified's long-term goal to address unmet school facilities needs and significantly improve the conditions of aging and deteriorating school facilities as described in Los Angeles Unified local bond measures. The proposed action advances Los Angeles Unified's 2022-2026 Strategic Plan, Pillar 4 Operational Effectiveness, Modernizing Infrastructure by providing critical replacements and upgrades at schools.

Budget Impact:

The Project budget is \$1,834,544 and will be funded with Bond Program funds earmarked specifically for critical replacements and upgrades of school building/site systems and components.

The Project budget was prepared based on the current information known and assumptions about the proposed Project scope, site conditions, and market conditions. The Project budget will be reviewed throughout the planning, design, and construction phases as new information becomes known or unforeseen conditions arise and will be adjusted accordingly to enable the successful completion of the proposed Project.

Student Impact:

Approval of the proposed Project enables the District to continue ongoing efforts to undertake facilities improvements that help ensure the approximately 630 students attending Middleton Street Elementary School (Board District 5, Region East) are provided with a safe school environment that promotes teaching and learning.

Equity Impact:

Building components/systems in the worst condition, especially those that pose a safety hazard and/or will negatively impact school operations and other building systems if not addressed, will be addressed first.

Issues and Analysis:

It may be necessary to undertake feasibility studies, site analysis, scoping, and/or due diligence activities on the proposed Project prior to initiating design. As necessary, the Office of Environmental Health and Safety (OEHS) will evaluate the proposed Project in accordance with the California Environmental Quality Act (CEQA) to ensure compliance. If, through the planning and design process, it is determined the proposed Project scope will not sufficiently address the critical needs identified, the Project scope, schedule, and budget will be revised accordingly.

Attachments:

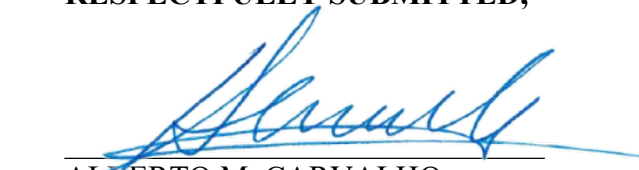
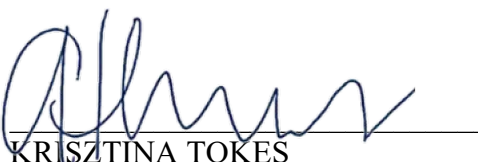
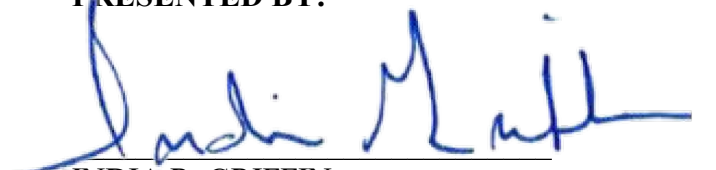
Exhibit A - BOC Resolution

Informatives:

None

Submitted:

11/04/23

RESPECTFULLY SUBMITTED,
ALBERTO M. CARVALHO
Superintendent**APPROVED BY:**
PEDRO SALCIDO
Deputy Superintendent,
Business Services and Operations**REVIEWED BY:**
DEVORA NAVERA REED
General Counsel☒ Approved as to form.**APPROVED BY:**
KRISZTINA TOKES
Chief Facilities Executive
Facilities Services Division**REVIEWED BY:**
NORBERTO DELGADILLO
Deputy Chief Business Officer, Finance☒ Approved as to budget impact statement.**PRESENTED BY:**
INDIA R. GRIFFIN
Director of Facilities Maintenance and Operations

SCHOOL CONSTRUCTION BOND CITIZENS' OVERSIGHT COMMITTEE

Margaret Fuentes, Chair
LAUSD Student Parent
D. Michael Hamner, FAIA, Vice-Chair
American Institute of Architects
Samantha Rowles, Secretary
LAUSD Student Parent
Robert Campbell, Executive Committee
L.A. Co. Auditor-Controller's Office
Scott Pansky, Executive Committee
L.A. Area Chamber of Commerce

Neelura Bell
CA Charter School Association
Chad Boggio
L.A. Co. Federation of Labor AFL-CIO
Jeffrey Fischbach
CA Tax Reform Assn.
Aleigh Lewis
L.A. City Controller's Office
Patrick MacFarlane
Early Education Coalition

Jennifer McDowell
L.A. City Mayor's Office
Brian Mello
Assoc. General Contractors of CA
Dr. Clarence Monteclaro
Tenth District PTSA
William O. Ross IV
31st District PTSA
Connie Yee (Alternate)
L.A. Co. Auditor-Controller's Office
Vacant
AARP

Joseph P. Buchman – Legal Counsel
Burke, Williams & Sorensen, LLP
Lori Raineri and Keith Weaver – Oversight Consultants
Government Financial Services Joint Powers Authority

Timothy Popejoy
Bond Oversight Administrator
Perla Zitle
Bond Oversight Coordinator

RESOLUTION 2023-44

BOARD REPORT 124-23/24

RECOMMENDING BOARD APPROVAL TO DEFINE AND APPROVE THE MIDDLETON STREET ELEMENTARY SCHOOL COOLING TOWER REPLACEMENT PROJECT AND AMEND THE FACILITIES SERVICES DIVISION STRATEGIC EXECUTION PLAN TO INCORPORATE THEREIN

WHEREAS, District Staff proposes that the Board of Education (Board) define and approve the Middleton Street Elementary School Cooling Tower Replacement Project with a budget of \$1,834,544 (the "Project") as described in Board Report 124-23/24 attached hereto, and amend the Facilities Services Division (Facilities) Strategic Execution Plan (SEP) to incorporate therein, and authorize the Chief Procurement Officer and/or the Chief Facilities Executive, and/or their designee(s), to execute all instruments necessary to implement the proposed Project; and

WHEREAS, Projects developed under the School Upgrade Program category of need, Critical Replacements and Upgrades of School Building/Site Systems and Components, will replace failing building systems that create safety concerns and are disruptive to school operations; and

WHEREAS, The proposed Project will replace the cooling tower and water treatment unit at the Administration Building and provide new joists to support the new tower; and

WHEREAS, Construction is anticipated to begin in the first quarter of 2024 and be completed in the fourth quarter of 2024; and

WHEREAS, The proposed Project is consistent with the Los Angeles Unified School District (Los Angeles Unified or District)'s long-term goal to address unmet school facilities needs and significantly improve the conditions of aging and deteriorating school facilities as described in Los Angeles Unified local bond measures; and

RESOLUTION 2023-44**RECOMMENDING BOARD PPROVAL TO DEFINE AND APPROVE THE MIDDLETON STREET ELEMENTARY SCHOOL COOLING TOWER REPLACEMENT PROJECT AND AMEND THE FACILITIES SERVICES DIVISION STRATEGIC EXECUTION PLAN TO INCORPORATE THEREIN**

WHEREAS, District Staff has determined that the proposed Project is necessary to improve student health, safety, and educational quality; and

WHEREAS, The Board of Education's approval of the proposed Project will authorize District Staff to proceed with the expenditure of Bond Program funds to undertake the Project in accordance with the provisions set forth in Los Angeles Unified local bond measures K, R, Y, Q, and RR; and

WHEREAS, District Staff has stated that the Office of General Counsel has concluded that expenditures of the intended bond funds for this project are legally permissible under State and Federal law including with respect to applicable federal tax-exempt bond requirements; and

WHEREAS, District staff has concluded that this proposed Facilities SEP amendment will facilitate Los Angeles Unified's ability to successfully complete the Facilities SEP.

NOW, THEREFORE, BE IT RESOLVED THAT:

1. The School Construction Citizens' Bond Oversight Committee (BOC) recommends that the Board of Education define and approve the proposed Project with a budget of \$1,834,544, and amend the Facilities SEP to incorporate therein, as described in Board Report 124-23/24, a copy of which is attached hereto in the form it was presented to the BOC and is incorporated herein by reference.
2. This resolution shall be transmitted to the Los Angeles Unified School District Board of Education and posted on the Oversight Committee's website.
3. The District is directed to track the above recommendation and to report on the adoption, rejection, or pending status of the recommendations as provided in section 6.2 of the Charter and Memorandum of Understanding between the Oversight Committee and the District.

ADOPTED on November 30, 2023, by the following vote:

AYES: 9

ABSTENTIONS: 0

NAYS: 0

ABSENCES: 5

/Margaret Fuentes/

Margaret Fuentes
Chair

/Michael Hamner/

D. Michael Hamner
Vice-Chair